Legal aspects of IT security
Master in cybersecurity

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Cybercriminality

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Summary

I. Concepts of Belgian general criminal law
II. The main cybercriminality offences
III. Practical exercise

I. Concepts of Belgian general criminal law

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I. Concepts of Belgian general criminal law

1. The concept of criminal law
2. Qualification of the offence
3. The constituent elements of the offence
4. Special issues: attempt and concurrence of offences

I. Concepts of Belgian general criminal law
1. The concept of criminal law

"Strictly speaking, criminal law is a branch of public law whose purpose is to determine which forms of behaviour are classified as offences by the law and to set the penalties for them"

(Free translation from D. Vandermeersch, Eléments de droit pénal et de procédure pénale, Bruxelles, la Charte, 2019, p. 9)

I. Concepts of Belgian general criminal law
2. Qualification of the offence

- Qualification of the fact: comparing the raw fact with a legal text within the scope of which it appears to fall.

- Qualification of the offence: determining whether the fact thus qualified belongs to a legal category of offences, into which it must absolutely fit.

-> 3 categories of offence: crime, misdemeanor and contravention

! New Criminal Code in April

I. Concepts of Belgian general criminal law
3. The constituent elements of the offence

3 components:

- Legal element
- Material element: action or omission
- Mental element

- Serious fault
- Fraud (general/special)

I. Concepts of Belgian general criminal law
4. Special issues: attempt and concurrence of offences

A. Attempt

3 conditions (article 9 Criminal Code):

- External acts constituting a beginning of performance
- Direct fraud
- Suspension/lack of effect due to circumstances beyond the control of the perpetrator

I. Concepts of Belgian general criminal law
4. Special issues: attempt and concurrence of offences

A. Attempt

Distinction :

- Level 2 to 8 penalties: penalty of the level immediately below that provided for the offence committed
- Level 1 penalty: same penalty as that provided for the offence committed or additional penalty where the law provides for one and the judge considers it appropriate

I. Concepts of Belgian general criminal law
4. Special issues: attempt and concurrence of offences

B. Concurrence of offences

Distinction:

- Offences consisting of a single act (article 61 of the Criminal Code)

‘If the same act constitutes several offences, the principal penalty shall be determined on the basis of the most severe penalty. Additional penalties shall be cumulative within the limits provided for by law.’

- Concurrent offences consisting of several acts (article 62 of the Criminal Code)

"§ 1. There is a concurrence of several acts when a person isfound guilty of several offences, each resulting from a different actand committed at a time when none of these acts had been the subject of a final conviction that had become res judicata.§ 2. If the judge considers that the offences constituting the concurrence should be punished with a level 7 or 8 penalty, only the most severe penalty shall be imposed. The other principal penalties shall be absorbed by this penalty. Additional penalties shall be combined within the limits provided for by law."

II. The main cybercriminality offences

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II. The main cybercriminality offences

1. Computing forgery
2. Computer fraud
3. Hacking
4. Computer sabotage
5. Cyber-stalking
6. Slander/defamation
7. Criminal sexual offences
8. Refusal of information/cooperation

II. The main cybercriminality offences
1. Computing forgery

Prerequisite: forgery of documents (art. 196 C. Pén)

Forgery = "*concealing the truth with fraudulent intent or malice aforethought, in a manner provided for by law, in a writing protected by it, from which prejudice may result*"

(Free translation of Cass., 25 février 2015, R.G. P.14.1764.F)

II. The main cybercriminality offences
1. Computing forgery

- Material elements
- Alteration of the truth
- Method of alteration provided for by law
- Writing protected by law
- Damage (Forgery likely to cause damage, Material or moral damage to a collective, public, individual or private interest, At the time the forgery was committed)

- Moral element: special fraud (Fraudulent intent OR malice aforethought)

- Penalty : imprisonment from 5 to 10 years

II. The main cybercriminality offences
1. Computing forgery

Back to computing forgery *(article 210bis C. pén)*

- Material elements

- Computer data
- Alteration of the truth
- Introduction, modification or deletion of data in a computer system or modification, by any technological means, of the possible use of data in a computer system.

- Moral element: special intent (Fraudulent intent OR malice aforethought)

- Penalty : Imprisonment from 6 months to 5 years and/or a fine from 26 to 100 000 euros (x8)

II. The main cybercriminality offences
1. Computing forgery

The new Criminal Code

Art. 451. Forgery of documents or other durable media and the use of forgeries

"§ 1. Forgery of documents or other durable media consists of, with fraudulent intent or with the intention of causing harm, fabricating a forgery or falsifying the expression of a thought in any written document or other durable medium that may serve as evidence in relation to a fact relevant to the law. This offence is punishable by a level 3 penalty.

§ 2. The use of forgeries consists of using forgeries in writing or on other durable media with fraudulent intent or with the intention of causing harm.

This offence is punishable by a level 3 penalty."

II. The main cybercriminality offences
2. Computer fraud

Prerequisite : “classic” fraud *(art. 496, al. 1er C. pén)*

“Classic fraud” = "*offence committed by a person who, with the aim of appropriating something belonging to someone else, obtains it by fraudulent means*".

II. The main cybercriminality offences
2. Computer fraud

- *Material elements*

- *Voluntary handing over or delivery*
- *Things protected by law*
- *Use of fraudulent means (Use of false names, Use of false qualities or Fraudulent manoeuvres)*

- *Moral element: special fraud (Intention to appropriate a thing belonging to another, to usurp the civil possession of the thing)*

- Penalty : Imprisonment from 1 month to 5 years and a fine from 26 to 3000 euros (x8)

II. The main cybercriminality offences
2. Computer fraud

Back to computer fraud *(art. 504quater C. pén)*

- Material elements

- Use of means to obtain an illegal economic advantage

- Entering, modifying or deleting data in a computer system or modifying the normal use of such data

- Moral element: special intent (Fraudulent intent: seeking to obtain an advantage or profit)

- Penalty : Imprisonment from 6 months to 5 years and/or a fine from 26 to 100 000 euros (x8)

II. The main cybercriminality offences
2. Computer fraud

The new Criminal Code

Art. 488. Computer fraud

"Computer fraud consists of seeking to obtain, for oneself or for others, with fraudulent intent, an illegal economic advantage by entering into a computer system, modifying or deleting data that is stored, processed or transmitted by a computer system, or modifying by any technological means the normal use of data in a computer system.

This offence is punishable by a level 3 penalty."

II. The main cybercriminality offences
3. Hacking

Distinction :

A. External hacking (art. 550bis, §1er C. pén.)

B. Internal hacking (art. 550bis, §2 C. pén.)

II. The main cybercriminality offences
3. Hacking

Distinction :

A. External hacking (art. 550*bis*, §1er C. pén.)

B. Internal hacking (art. 550*bis*, §2 C. pén.)

II. The main cybercriminality offences
3. Hacking

A. **External hacking** (art. 550*bis*, §1er C. pén.)

- Material element

- Computer system
- Access and/or maintenance
- No authorization

- Moral element: general fraud

- Penalty : Imprisonment from 6 months to 2 years and/or a fine from 26 to 25 000 euros (x8)

II. The main cybercriminality offences
3. Hacking

B. Internal hacking (art. 550*bis*, §2 C. pén.)

- Material elements

- Computer system
- Access and/or maintenance
- Exceeding authorisation

- Moral element: special intent

- Penalty : Imprisonment from 6 months to 3 years and/or a fine from 26 to 25 000 euros (x8)

II. The main cybercriminality offences
3. Hacking

The new Criminal Code

Art. 524. Unauthorised external access to a computer system

"Unauthorised external access to a computer system consists ofa person, knowing that they are not authorised to do so, deliberately accessing or remaining in a computer system.

This offence is punishable by a level 2 penalty.“

Art. 525. Unauthorised internal access to a computer system

"Unauthorised internal access to a computer system consists ofa person, with fraudulent intent or with the intention of causing harm, exceeding their access rights to a computer system.

This offence is punishable by a level 2 penalty."

II. The main cybercriminality offences
3. Hacking

The new Criminal Code

Art. 526. Aggravated internal or external unauthorised access to a computer system

"*Unauthorised internal or external access to a computer system is punishable by a level 3 penalty when the perpetrator:*

1° retrieves, in any manner whatsoever, data stored,processed or transmitted by the computer system;

2° makes any use whatsoever of a computer system belonging to a third party or uses the computer system to access the computer system of a third party, or;

3° causes damage, even unintentionally, to the computer system or to the data stored, processed or transmitted by that system, or to a third party's computer system or to the data stored, processed or transmitted by that system".

II. The main cybercriminality offences
3. Hacking

The new Criminal Code

+ Provocation, possession or provision of a device intended to enable unauthorised access to a computer system, attempt and concealment

II. The main cybercriminality offences
4. Computer sabotage (article 550*ter* C. pén)

- Material elements

- Computer system
- Introduction, modification or deletion of data or modification by any technological means of the normal use of data
- Directly or indirectly
- No authorization

- Moral element: general intent

- Penalty : Imprisonment from 6 months to 3 years and/or a fine from 26 to 25 000 euros (x8)

II. The main cybercriminality offences
4. Computer sabotage (article 550*ter* C. pén)

The new Criminal Code

Art. 531. Computer sabotage

"*Computer sabotage consists of a person knowingthat they are not authorised to do so, deliberately, directly or indirectly, introducing data into a computer system, modifying or deleting data, or modifying by any technological means the normal use of data in a computer system.*

This offence is punishable by a level 2 penalty. Notwithstanding Article 9, § 1, paragraph 4, attempting to commit this offence is punishable by the same penalty as the completed offence."

II. The main cybercriminality offences
4. Computer sabotage (article 550*ter* C. pén)

The new Criminal Code

Art. 532. Aggravated computer sabotage

"*Computer sabotage is punishable by a level 3 penalty when:1° the perpetrator acts with fraudulent intent or with the intention of causing harm;2° the offence is committed against a computer system of acritical infrastructure as referred to in Article 3, 4°, of the Law of 1 July 2011 on the security and protection of critical infrastructures;3° the perpetrator causes, as a result of the computer sabotage, damage to data in the computer system concerned or in any other computer system;4° the perpetrator prevents, totally or partially, as a result of the computer sabotage, the proper functioning of the computer system concerned or any other computer system*."

+ Possession or provision of a device intended to commit computer sabotage

II. The main cybercriminality offences
5. Cyber-stalking (article 442*bis* C. pén)

- Material elements

- Harassment (A repetition of acts, Acts that are not reprehensible in themselves and Behaviour directed at a specific individual)

- Serious disturbance of the victim's peace and quiet

- Moral element : special intent (the perpetrator knows or must know that his behaviour affects the victim's peace of mind)

- Penalty : Imprisonment from 15 days to 2 years and/or a fine from 50 to 300 euros (x8)

II. The main cybercriminality offences
5. Cyber-stalking (article 442*bis* C. pén)

The new Criminal Code

Art. 237. Harassment

"*Harassment consists of knowingly and wilfully disturbing a person's peace, even if it is a single occurrence or results from a single act, when one knew or should have known that such behaviour would seriously affect the peace of the person concerned.*

This offence is punishable by a level 2 penalty."

II. The main cybercriminality offences
5. Cyber-stalking (article 442*bis* C. pén)

The new Criminal Code

Art. 238. Aggravated harassment

"*Harassment is punishable by a level 3 penalty if:*

1° the victim is a minor or a person in a situation of vulnerability;

2° the offence was committed by a person in a position of authority or trust in relation to the victim;

3° the offence was committed by two or more persons."

II. The main cybercriminality offences
5. Cyber-stalking (article 442*bis* C. pén)

The new Criminal Code

Art. 239. Aggravating factors

"*When determining the sentence or measure and its severity for an offence referred to in this section, the judge shall take into consideration:*

1° the fact that the offence involves committing or causing a non-consensual sexual act to be committed on the victim;

2° the fact that the offence was committed in the presence of a minor;

3° the fact that the offence was committed in the name of culture, custom, tradition, religion or so-called "honour"."

II. The main cybercriminality offences
6. Slander/defamation (article 443 C. pén.)

- Material elements :

- Charge
- Precise fact
- To a person
- Of such a nature as to be prejudicial to honour
- Not legally proven (slander) or proof legally prohibited (defamation)
- Publicly

- Moral element: special intent, intention to harm the victim ("maliciously")

- Penalty : Imprisonment from 8 days to 1 year and a fine from 26 to 200 euros (x8)

II. The main cybercriminality offences
6. Slander/defamation (article 443 C. pén.)

The new Criminal Code

Art. 240. Slander

"*Slander consists of publicly and maliciously attributing to a person a specific fact that is likely to damage that person's honour or expose them to public contempt. This offence is punishable by a level 1 penalty. There is no slander if the person accused of slander makes it credible, by any means whatsoever, that the imputed fact is plausible. This cannot be the case when the imputation of a certain fact is made with the aim of causing harm without any public or private interest*."

Art. 245. Aggravating factor

'*When choosing the penalty or measure and its severity for an offence referred to in this section, the judge shall take into consideration the fact that the victim is a minor or a person in a vulnerable situation.*'

II. The main cybercriminality offences
7. Criminal sexual offences

A. Non-consensual dissemination of sexual images and recording
B. Images of sexual abuse of minors
C. Approaching a minor for sexual purposes

II. The main cybercriminality offences
7. Criminal sexual offences

A. **Non-consensual dissemination of sexual images and recording** (article 417/9 C. Pén.)

- Material elements

- Broadcast
- Type of content : sexual images
- Lack of consent by the victim

- Moral element : Dissemination with intent and knowledge

- Penalty : Imprisonment from 6 months to 5 years

II. The main cybercriminality offences
7. Criminal sexual offences

B. Images of sexual abuse of minors (art. 417/44-417/47 C. pén.)

- the production or dissemination of images of sexual abuse of minors

Penalty : Imprisonment from 5 to 10 years and a fine from 500 to 10 000 euros (x8)

- possession and acquisition of images of sexual abuse of minors

Penalty : Imprisonment from 1 to 5 years and a fine from 500 to 10 000 euros (x8)

- access to images of sexual abuse of minors

Penalty : Imprisonment from 1 to 3 years and a fine from 500 to 10 000 euros (x8)

II. The main cybercriminality offences
7. Criminal sexual offences

C. Approaching a minor for sexual purposes (art. 417/24 C. Pén.)

- Material elements

- Meeting proposal
- By any means whatsoever
- To a minor
- Proposal followed by acts likely to lead to a meeting

- Moral element : Intention to commit an offence against his or her sexual integrity, right to sexual self-determination or morality

- Penalty : Imprisonment from 1 to 3 years

II. The main cybercriminality offences
7. Criminal sexual offences

The new Criminal Code

-> Reform of sexual criminal law in 2022

-> New numbering (Articles 132 et seq.)

II. The main cybercriminality offences
8. Refusal of information/cooperation

A. Identification of a subscriber
B. Tracking and tracing of electronic communications
C. Non-secret search in a computer system
D. Secret search in a computer system

II. The main cybercriminality offences
8. Refusal of information/cooperation

A. Identification of a subscriber (article 46*bis* C.I.Cr.)

"*Any person who refuses to communicate the data or who does not communicate it in real time or, where applicable, at the time specified in the request shall be liable to a fine of between 26 euros and 10,000 euros*".

II. The main cybercriminality offences
8. Refusal of information/cooperation

B. Tracking and tracing of electronic communications (article 88*bis* C.I.Cr.)

"*Any person who refuses to provide technical assistance with the requisitions referred to in this article [...] or does not do so in real time or, where applicable, at the time specified in the requisition, shall be liable to a fine of between 26 euros and 10,000 euros*"

II. The main cybercriminality offences
8. Refusal of information/cooperation

C. Non-secret search in a computer system (article 88*quater* C.I.Cr.)

"Anyone who refuses to provide the cooperation ordered in §§ 1 and 2 or who obstructs the search or its extension in the computer system, is punished by imprisonment of between 6 months and 3 years and/or a fine of between 26 euros and 20,000 euros".

II. The main cybercriminality offences
8. Refusal of information/cooperation

D. Secret search in a computer system (article 90*quater* C.I.Cr.)

"*Any person who refuses to provide technical assistance with the requests referred to in paragraphs 1 and 2 shall be punished by imprisonment for a term of 6 months to 1 year and/or a fine of 26 euros to 20,000 euros*".

II. The main cybercriminality offences
8. Refusal of information/cooperation

The new Criminal Code

Art. 655. Failure to comply with the obligation to cooperate with the investigation

"*Failure to comply with the obligation to cooperate with the investigation consists of deliberately refusing to cooperate with an investigative measure, failing to carry out that investigative measure in the manner or at the time required, or removing, destroying or altering the required elements in cases where the law makes cooperation with the investigative measure mandatory. This offence is punishable by a level 2 penalty. Notwithstanding Article 52, the fine as an additional penalty shall be at least EUR 200 and at most EUR 160,000*."

Art. 656. Aggravated failure to comply with the obligation to cooperate with the investigation

"*If the failure to comply with the obligation to cooperate with the investigation is committed in a situation where the required cooperation could have prevented the commission of an offence or could have limited its consequences, the offence shall be punishable by a level 3 penalty and the fine shall be an additional penalty of at least EUR 200 and at most EUR 400,000, by way of derogation from Article 52*."

III. Practical Exercise

III. Practical exercise

« Proceedings were brought against Mr X. after Mr Y. reported that he had child pornography images on his PC. Mr Y. is a repairer to whom the PC had been entrusted for repair.Mr X. put forward two arguments:

- The mere possession of images of sexual abuse of children is not punishable;
- Mr Y. had no right to break into his computer system for reasons other than those for which the PC had been entrusted to him (repair)".

(Casus inspired by Cass., 13 January 2016, R.G. P.15.0080.F)

What do you think? Were computer crime offences committed by Messrs X. and Y.? Support your answer with the relevant legal bases

Any questions?

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Thank you for your attention!

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